



POLICE DEPARTMENT

March 18, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202409491 (Incident Date: September 20, 2024) regarding Police Officer John Kupres, Tax No. 966144 (PODS Case No. C-036675), and Police Officer Santo Villar, Tax No. 942673 (PODS Case No. C-036676)

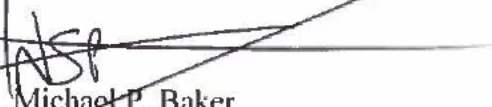
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Kupres and Police Officer Villar and determined that the proposed penalty of a Schedule "A" Command Discipline is not warranted.

In this matter, the Police Commissioner disagrees with the substantiated allegation for the failure to provide a business card. The respondents conducted a vehicle stop after observing a vehicle traveling with excessive window tints. The respondents subsequently exercised their discretion and did not issue a summons to the complainant. Additionally, the complainant did not request a business card from the Officers. Administrative Code Section 14-174 lists law enforcement activities that generally require the issuance of business cards. The NYPD Administrative Guide Procedure 304-11 lists the same activities. Probable cause stops for violations, absent additional factors, do not fall within the enumerated categories. Thus, the Police Officers were not required to issue a business card.

Therefore, having considered the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Police Officer Kupres and Police Officer Villar for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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